

Calendar Line 2

Case Name: *FPP MB, LLC v. Jennifer Lewis et al. (and related cross-actions)*

Case No.: 24CV433325 (consolidated with: 24CV435042, 24CV435259, and 24CV435600)

I. Background

On March 18, 2024, plaintiff FPP MB, LLC (“FPP”) filed its complaint. On May 31, 2024, the Court consolidated this matter with three other actions. On June 11, 2024, FPP amended its complaint (“FAC”) to include allegations related to the HOA’s authority to foreclose on FPP’s 179 units.

On July 26, 2024, defendants Jennifer Lewis and Lynette Mandal (“Defendants”) filed a demurrer and motion to strike the FAC. The hearing on the motions was scheduled for October 24, 2024. Oppositions to the motions were due by October 13, 2024.

On October 22, 2024, FPP filed its Request for Dismissal of the 24CV433325 matter.⁴ On October 23, 2024, FPP sent an email to the clerk of court with respect to filing the dismissal. This was the same day the Court issued its tentative ruling sustaining without leave to amend Defendants’ demurrer. Both the demurrer and motion to strike went unopposed by FPP. Additionally, FPP did not contest the tentative ruling or appear at the hearing on the motion and so the tentative ruling was adopted. (See November 4, 2024 Order on Demurrer, p. 1:25.)

Currently before the Court is FPP’s motion for order to revoke prior court order, pursuant to Code of Civil Procedure section 1008, subdivision (a). Thus, the Court will treat this motion as one for reconsideration. Defendants timely opposed the motion. FPP did not file a reply.⁵

II. Legal Standard

“[Code of Civil Procedure] Section 1008 represents the Legislature’s attempt to regulate what the Supreme Court has referred to as ‘repetitive motions.’” (*Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 885, disapproved on other grounds in *Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830.) Section 1008, subdivision (a) requires that any such motion be: (1) filed within 10 days after service upon the party of written notice of entry of the order of which reconsideration is sought, (2) supported by new or additional facts, circumstances or law, and (3) accompanied by an affidavit detailing the circumstances of the first motion and the respects in which the new motion differs from it. (*Ibid.*)

⁴ The dismissal was not processed by the clerk’s office until October 25, 2024, the day after the hearing on the demurrer.

⁵ This motion was previously calendared for March 7, 2025 in Department 16. It was moved to Department 2’s March 17, 2025 calendar to be heard by Hon. Judge Rosen as required by Code of Civil Procedure section 1008, subdivision (a) [any party affected by an order may “make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.”].